Meridian & Rao Legal Associates, Hyderabad
Internal Case File — Privileged & Confidential

Anil Kumar vs. Vertex Software Solutions Pvt. Ltd.

Industrial Dispute No. 34/2024 — Alleged Wrongful Termination

Illustrative / synthetic case file created for training and demonstration purposes (e.g., testing retrieval-augmented generation systems). All names, dates, case numbers, and facts are fictional and do not correspond to any real person, entity, or proceeding.

1. Case Overview

Case No.	I.D. No. 34/2024
Forum	Labour Court-II, Hyderabad
Claimant / Workman	Mr. Anil Kumar, former Senior QA Engineer
Respondent / Management	Vertex Software Solutions Pvt. Ltd.
Nature of Dispute	Alleged wrongful/illegal termination without following retrenchment procedure under the Industrial Disputes Act, 1947
Relief Sought	Reinstatement with continuity of service and full back wages, or in the alternative, enhanced compensation
Firm's Client	Respondent (Vertex Software Solutions Pvt. Ltd.)
Handling Advocate	Adv. Nandini Rao, Associate

2. Brief Facts

The claimant was employed with the respondent as a Senior QA Engineer from 3 June 2019 until his termination on 30 September 2023. The respondent states the termination formed part of a broader workforce reduction affecting 22 employees across the QA function, necessitated by the loss of a major client contract, and that one month's notice pay along with retrenchment compensation calculated under Section 25F of the Industrial Disputes Act, 1947 was tendered to the claimant at the time of termination.

The claimant contends that the termination was in substance a targeted removal disguised as retrenchment, pointing to the fact that two employees junior to him in the same role were retained, in alleged violation of the 'last-in-first-out' principle ordinarily expected in retrenchment absent a valid reason for deviation. The claimant further alleges that no prior warning or performance-related communication was ever issued to him, and that the real reason for his selection was a workplace complaint he had raised in March 2023 regarding a reporting manager, which the respondent denies is connected to the termination.

3. Chronology of Proceedings

Date	Event	Notes / Outcome
3 Jun 2019	Claimant's date of joining	Engaged as Senior QA Engineer, confirmed after probation
14 Mar 2023	Claimant raises internal complaint against reporting manager	Handled through internal grievance process; claimant alleges no resolution communicated
30 Sep 2023	Termination effected	22 employees affected in QA function-wide reduction; notice pay and retrenchment compensation tendered
18 Oct 2023	Claimant raises industrial dispute	Conciliation proceedings initiated before Assistant Labour Commissioner

22 Dec 2023	Conciliation fails	Failure report sent to appropriate government for reference
15 Feb 2024	Dispute referred to Labour Court	Registered as I.D. No. 34/2024
10 Apr 2024	Claimant's statement of claim filed	Alleges violation of Section 25G (seniority principle) and victimization
20 May 2024	Respondent's written statement filed	Denies victimization; asserts valid business reasons for retaining two junior employees with specialized certification
9 Aug 2024	Issues framed	Including validity of deviation from seniority principle and alleged link to internal complaint
11 Nov 2024	Claimant examined-in-chief	Deposed on service history, retention of junior colleagues, and internal complaint
6 Feb 2025	Claimant cross-examined	Questioned on timeline between complaint and termination; matter part-heard

4. Documents on Record

Exhibit No.	Description	Relevance
Ex. W1	Appointment letter dated 3 Jun 2019	Establishes date of joining and designation
Ex. W2	Internal complaint email dated 14 Mar 2023	Basis for claimant's victimization argument
Ex. W3	Termination letter dated 30 Sep 2023 with compensation calculation	Confirms notice pay and retrenchment compensation tendered
Ex. M1	QA team headcount and seniority list, Sep 2023	Respondent's evidence on relative seniority and specialized skill sets retained
Ex. M2	Client contract termination notice (redacted), Jul 2023	Supports respondent's business rationale for workforce reduction
Ex. M3	Internal grievance closure note dated 2 May 2023	Respondent's evidence that the complaint was addressed independently of termination

5. Key Legal Issues

- Whether the termination constitutes 'retrenchment' within the meaning of Section 2(oo) of the Industrial Disputes Act, 1947, and whether Section 25F conditions were duly complied with
- Whether deviation from the 'last-in-first-out' principle under Section 25G was justified by the specialized certification rationale advanced by the respondent
- Whether the termination was, in substance, victimization connected to the claimant's internal complaint of March 2023
- If termination is found invalid, whether reinstatement with back wages or monetary compensation in lieu is the appropriate relief

6. Current Status

The claimant's cross-examination is part-heard, with continued questioning expected on the temporal proximity between his internal complaint and selection for retrenchment. Respondent's evidence, including testimony from the QA department head, has not yet commenced.

7. Next Steps

- Next hearing: 25 April 2025 — continuation of claimant's cross-examination
- Prepare QA department head as respondent's witness on specialized certification rationale (Ex. M1)

- Compile documentary trail showing grievance closure predates termination decision, to rebut victimization allegation
- Reassess settlement range in consultation with client HR team ahead of respondent's evidence stage

8. Internal Notes (Privileged & Confidential)

Client HR has confirmed internally that the grievance was closed on 2 May 2023 with no adverse finding against the claimant, and maintains the retrenchment selection was independent of it. Team should be prepared for the claimant's counsel to press hard on the roughly four-month gap between the complaint and termination during further cross-examination and in final arguments.

9. Relevant Legal Provisions

- Section 2(oo), Industrial Disputes Act, 1947 — Definition of 'retrenchment'
- Section 25F, Industrial Disputes Act, 1947 — Conditions precedent to retrenchment, including notice and compensation
- Section 25G, Industrial Disputes Act, 1947 — Procedure for retrenchment, including the 'last-in-first-out' principle absent reasons to the contrary
- Section 25N, Industrial Disputes Act, 1947 — Additional conditions applicable where the establishment falls within its scope (not applicable here given headcount)

10. Precedents Relied Upon

The following categories of precedent are being relied upon; specific citations to be finalized by the handling advocate ahead of final arguments:

- Authorities on permissible deviation from the seniority principle under Section 25G where genuine and demonstrable business reasons, such as specialized skill retention, are shown
- Authorities distinguishing bona fide retrenchment for economic reasons from disguised or colorable termination amounting to victimization
- Authorities on the evidentiary burden on a workman alleging victimization to show a causal link, as opposed to mere temporal proximity, between a protected act and termination

12. Risk Assessment

The respondent's documentary compliance with Section 25F (notice and compensation) is not seriously disputed. The principal litigation risk is the roughly four-month gap between the claimant's internal complaint and his selection for retrenchment, combined with the retention of two junior colleagues, which the claimant will argue together suggest victimization rather than a neutral business decision. The specialized certification rationale (Ex. M1) and the independently documented grievance closure (Ex. M3) are the respondent's strongest counters to this inference.

13. Witness List

Witness	Role	Status
Claimant — Mr. Anil Kumar	Testifies to service history, complaint, and termination circumstances	Examined-in-chief completed; cross-examination part-heard
MW-1 (anticipated) — QA Department Head	To testify on specialized certification rationale (Ex. M1)	Not yet examined; being prepared for respondent's evidence stage
MW-2 (anticipated) — HR Business Partner	To testify on grievance handling and closure (Ex. M3)	Not yet examined

End of document. Internal reference: MER-EMP-2024-034 (synthetic training corpus).